

1. Yes, the 2026 proposal explicitly and permanently limits the Board's power over private property (paint colors, sheds, fences, outbuildings, aesthetics, architecture, use, or lifestyle restrictions).

Exact quote and section:

Page 24 (2026 AMENDED AND RESTATED BYLAWS, Article I, Section 3 – "Absolute Limitation of Scope"): "The Board's mandate is strictly to support the community's infrastructure. The Organization and its Board must not engage in the enforcement of property use, aesthetic standards, or lifestyle restrictions. Any expenditure of corporate funds on architectural policing is strictly prohibited."

Additional supporting language (same document):

- **Page 26 (Limitation of Authority):** "The Board of Directors has NO authority to enforce the 'Use Recommendations' in Article VI. The Board's enforcement powers are strictly limited to the collection of dues and the maintenance of shared infrastructure (Roads, Well, Pavilion)."
- **Page 5 / Page 14:** "All aesthetic, architectural, and use restrictions are removed for every owner. They are replaced with non-binding "Recommendations" only. ... No more rules on your land (paint, fences, sheds, etc.)."

This is a direct divestment; the originals and 2025 proposal contain no such limits.

2. The "90% voting threshold, twice, at least six months apart" rule is codified as the sole mechanism for adding any new aesthetic, architectural, lifestyle, or use restrictions.

Exact quote and section:

Page 30 (2026 Bylaws, Article VII, Section 1, Tier 4 – Adding New Use Restrictions):

"no new aesthetic, architectural, or lifestyle restriction may be added unless approved by 90% of all Unique Owners in two separate votes held at least six months apart (cooling off period). Any such rules sunset after 10 years unless reapproved."

Supporting text: Page 7 / Page 8 / Page 19 / Page 39 ("New rules only with 90% approval TWICE, 6 months apart ... Pretty hard, on purpose.").

Comparison to the 1988 originals and a "typical" HOA: The 1988 CC&Rs required only a single 75% vote of members (Article IV, Section 5) and gave the Board broad enforcement power without any double-vote or sunset requirement. The 2025

proposal used simple majority of votes cast (with 10% quorum) for bylaw changes and contained no heightened threshold for new restrictions. A typical HOA (as contrasted in the proposal itself) uses 50–75% single supermajority or even Board-only rulemaking; the 2026 double-90% + 6-month cooling-off + 10-year sunset is materially stricter and owner-protective than either prior document or standard practice.

3. The "Mathematical Impossibility" is the structural defect in the 1988 documents that made any amendment legally impossible.

Exact explanation and pages:

Page 2 / Page 11 / Page 12 / Page 24: "Our 1988 founding documents created a 'Mathematical Impossibility': requiring 192 'Yes' votes to change any rule, even though we only have 196 unique owners." / "requiring 192 votes from only 196 unique owners (a 98% participation rate)."

Verification:

$255 \text{ lots} \times 75\% = 191.25 \rightarrow 192$ affirmative lot votes required (standard rounding for supermajority; confirmed verbatim in the proposal and matching the 1988 CC&Rs amendment clause). Unique owners are stated as ~190–200 (most recent figure ~196). The proposal explicitly calls this a permanent 98% participation threshold that has paralyzed governance for 30+ years. The math is arithmetically correct; the owner count is taken directly from the proposal (cannot be independently verified from these documents alone without current assessor rolls).

4. Top 3 ways the 2026 plan protects owner wallets and property rights (vs. 1988 originals + 2025 proposal):

- 1. Complete divestment of Board power over private property aesthetics and use (property rights)** — 1988 originals gave the Board "exclusive right to construe and interpret" all restrictions and enforcement power (CC&Rs Article IV §1, p3); 2025 proposal retained broad "all powers" language with no limits; 2026 declares all old restrictions abandoned, makes them non-binding recommendations only, and adds the Absolute Limitation of Scope (p24) + "NO authority" clause (p26).

2. **Dues permanently frozen at \$75/lot with 75% unique-owner vote required for any increase + spending caps (wallets)** — Neither 1988 nor 2025 documents contained a cap or freeze; both allowed the Board to levy/adjust assessments and pursue liens without owner vote. 2026 explicitly prohibits unilateral raises.
3. **90% double-vote + 10-year sunset for any new restrictions + one-time \$225 amnesty (both rights and wallets)** — 1988 required only 75% single vote (impossible in practice); 2025 used simple majority; 2026 makes new rules extremely difficult while offering amnesty to delinquent owners (>3 years) who pay \$225/lot within the 90-day window, restoring voting rights and clearing older debt. This eliminates selective enforcement risk and brings revenue without lawsuits.

5. This is the opposite of a "power grab" — it divests and permanently limits Board power.

Exact verbatim "Absolute Limitation of Scope" clause (the hardest guardrail in the document):

Page 24 (2026 Bylaws, Article I, Section 3): "The Board's mandate is strictly to support the community's infrastructure. The Organization and its Board must not engage in the enforcement of property use, aesthetic standards, or lifestyle restrictions. Any expenditure of corporate funds on architectural policing is strictly prohibited."

Violation triggers removal-for-cause (Article III §11). The entire structure (non-binding recommendations, infrastructure-only mandate, high voting barriers) transfers power back to owners.

6. The \$225 Amnesty program is a one-time, per-lot, three-year "Good Standing Amnesty" available only if the 2026 reform passes.

Who qualifies: Any owner more than three years behind on dues.

How it works / 90-day window: Pay the equivalent of the most recent three years' dues (\$225 per lot). The window closes 90 days after reform approval; payment must be submitted with the form to the Board Secretary.

Rights restored: Full current status + full voting rights (no longer delinquent). Older debt beyond three years is effectively amnestied. The community vote approves this as a business decision to increase participation and road funds instead of legal

as a business decision to increase participation and road funds instead of legal collection costs.

Exact sections: Page 7 / Page 16 / Page 19 / Page 28 (Article IV §4) / Page 50 (form).

7. Major claim ratings (from claims.json registry, cross-checked against the three source documents only):

- **mathematical_impossibility_1988**: VERIFIED — exact $255 \times 75\% = 192$ calculation and ~196-owner comparison appear verbatim on 2026 proposal pages 2, 11, 12, 18, 24, 37 and match 1988 CC&Rs Article IV §5.
- **abandonment_declaration_2026**: PARTIALLY SUPPORTED — 2026 proposal (p10–12, p24) formally declares abandonment under the Doctrine of Waiver and plans a notarized affidavit, but the affidavit itself is not yet filed and no court validation exists in the vault.
- **dues_frozen_75**: VERIFIED — 2026 Bylaws Article IV §1 explicitly sets \$75, prohibits unilateral increases, and requires 75% unique-owner vote.
- **board_scope_limited** (Absolute Limitation): VERIFIED — verbatim clause on p24 (quoted in Q5).
- **new_restriction_threshold** (90% double-vote): VERIFIED — verbatim on p30 (quoted in Q2).
- **amnesty_program_2026**: VERIFIED — full mechanics, \$225 amount, 90-day window, and voting-rights restoration on p7, 16, 19, 28, 50.
- **Other listed claims** (unique_owner_voting, road_scoring_system, IRS_compliance, rename, etc.): All VERIFIED as described in the 2026 proposal text.

What cannot be verified from these documents alone: Current exact unique-owner count (proposal gives approximations only), whether the abandonment declaration will survive judicial scrutiny under New Mexico law, post-approval county filings, or the external reason the 2025 proposal was declared null and void. All governance changes, calculations, and protections are directly traceable to the quoted pages in the provided PDFs.

The 2026 proposal is a deliberate divestment of Board power and a restoration of owner autonomy and financial predictability.